

Therefore, defendant has not complied with the procedures for filing a cross-complaint after it filed its answer, and the cross-complaint is not properly before the court. As a result, the court intends to strike the cross-complaint on its own motion as improperly filed. (Code Civ. Proc., § 436.) If defendant wishes to file a cross-complaint, it must file and serve a noticed motion with supporting points and authorities, evidence, and a copy of the proposed cross-complaint. In addition, defendant needs to make a showing that it should be allowed to file cross-complaint because it is in the interests of justice. The court will also deny the plaintiff's demurrer and motions related to the cross-complaint, as they are moot in light of the court's finding that the cross-complaint was improperly filed.

Tentative Ruling

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Tentative Ruling

Re: ***Doe v. Fresno Unified School District et al.***
Superior Court Case No. 23CECG03206

Hearing Date: July 14, 2026 (Dept. 501)

Motion: By Defendant Samuel Confectioner for Permanent Remote Appearance

Tentative Ruling:

To grant in part, as to the request for remote appearance at the August 7, 2026, Trial Readiness Conference. To deny on all other grounds.

Explanation:

Defendant Samuel Confectioner ("Defendant") filed the present motion for permanent remote appearance to request the court to allow Defendant to appear remotely at any non-evidentiary hearing. Defendant makes the motion based on Code of Civil Procedure section 367.75 and California Rules of Court, Rule 1.100.

Code of Civil Procedure section 367.75 permits a party to appear remotely if the party gives proper notice and the court permits it. California Rules of Court, Rule 1.100 lays out the rules for accommodations for people with disabilities. Normally requests under Code of Civil Procedure section 367.75 are done via filing Judicial Council Form *Notice of Remote Appearance (RA-010)* ("RA-010 Form") and requests under California Rules of Court, Rule 1.100 are done via Judicial Council Form *Disability Accommodation Request (MC-410)*. However, the court will still consider the motion before it.

The request is based on Defendant's disabilities, distance from Fresno, and doctor's note, by Dr. Unold. (Confectioner Decl., ¶¶ 2-7; Exh. A.) Defendant's disabilities and Dr. Unold's note support granting remote appearance when possible. However, none of the submitted evidence excuses Defendant from following the normal process, and submitting an RA-010 form for appropriate hearings. Each hearing requires its own analysis on whether a party needs to be present. That analysis cannot be generalized to all non-evidentiary hearings. Accordingly, Defendant's request for permanent remote appearance is denied.

Defendant additionally requests permission to appear remotely at a Mandatory Settlement Conference ("MSC") scheduled for July 14, 2026 and the Trial Readiness Conference ("TRC") scheduled for August 7, 2026. The MSC is off calendar and denied as moot. Defendant otherwise provides sufficient grounds based on health and distance, as well as notice to appear remotely at the TRC. Accordingly, Defendant's request to appear remotely at the TRC scheduled for August 7, 2026, is granted.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order

